

The Hardwar Ardh Kumbha Mela Rules, 2002

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State of Uttar Pradesh - Act

The Hardwar Ardh Kumbha Mela Rules, 2002

UTTAR PRADESH

India

The Hardwar Ardh Kumbha Mela Rules, 2002

Rule THE-HARDWAR-ARDH-KUMBHA-MELA-RULES-2002 of 2002

Published on 21 December 2002

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The Hardwar Ardh Kumbha Mela Rules, 2002

Published vide Notification No. 3035/202-SHA/6/AA-269(SHA/6)/2002,TC-1, dated 21st December, 2002

In exercise of the powers under sub-section (1) of Section 9 of the United Provinces Melas Act, 1938 (U.P. Act No. 16 of 1938

), read with Section 86 of the U.P. Reorganization Act, 2000 (Act, 29 of 2000

) the Governor is pleased to make the following rules namely:

1.

Short title, extent and commencement.

(1)

These rules may be called the Hardwar Ardh Kumbha Mela Rules, 2002.

(2)

This shall apply to the Kumbha Mela to be held at Hardwar during the year, 2004.

(3)

They shall come into force on and from December 15, 2003 and will continue to be in force till April 30, 2004.

2.

Definitions.

- In these rules unless there is anything repugnant in the subject or context,-

(a)

"Act" means the U.P. Melas Act, 1938 (U.P. Act No. XVI of ' 1938);

(b)

"Additional Officer-in-charge" means the officer appointed under the second proviso to clause (ii) of section of the Act;

(c)

"Commissioner" means the Commissioner, Garhwal Division;

(d)

"Committee" means the committee appointed by the District Magistrate under Section 5 of the Act;

(e)

"Mela" means the Ardh Kumbha Mela, Hardwar, 2004;

(f)

"Officer-in-charge" means the officer appointed by the State Government for the management and superintendence of Ardh Kumbha Mela Hardwar, 2004.

3.

Mela area.

- A notice showing the Mela area, as defined by the Officer-in-charge under Clause (iv) of Section 4 shall be affixed to conspicuous places in the Mela area for general information.

4.

Committee.

(1)

A Committee, the number of members of which shall not exceed 15 shall be constituted by the Officer-in-charge.

(2)

The Officer-in-charge and additional Officer-in-charge shall be the Chairman and Secretary of the Committee respectively.

(3)

Ten members shall form a quorum.

(4)

In the absence of a quorum at any meeting, the meeting shall be adjourned for another day. No quorum shall be necessary for an adjourned meeting.

5.

The Committee shall meet as often as necessary. In any meeting the Committee may consider the business on the agenda and any other business which may be admitted with the permission of the Chairman.

6.

Consultation with the Committee.

- The Officer-in-charge, as and when necessary consult the Committee in all matters.

7.

Audit and Vigilance Cell.

- For efficient and vigilant supervision of Mela Construction works an Audit and Vigilance Cell shall be constituted under the Officer-in-charge which would include the Senior Accounts Officers (Mela), and one Assistant Engineer and two Junior Engineers nominated by the Government.

8.

All receipts and expenditure connected with the management and arrangement of the Mela will be treated and accounted for an ordinary transaction creditable or debitible under district sub-heads subordinate to the relevant minor heads in the departmental budgets of the heads of departments concerned, amounts representing the proceeds of tolls,

fees and rents levied or charged under Sections 6, 7 and 8 of the Act shall be creditable to the head "0070-other Administrative Services-60-Other Services-800 other receipts-06-other miscellaneous receipts". The income of the Municipal Board, Hardwar and Rishikesh and Notified area Committee Muni-Ki-Rei from toll tax by road and pilgrim tax by rail during the Mela period that is from December 15, 2003 till April 30, 2004, shall be credited to the head "0042-Taxes on Goods and Passengers-102-Passenger tax on roads-01 Passenger tax on roads (Haridwar Ardhkumbh Mela 2004)". All expenditure to be incurred by the District Magistrate in connection with the Mela shall be chargeable to the relevant head under "2217-Sehri Vikas-80-General-800-Any 01 -Kendriya Ayojnagat/Kendra dwara Puronidhanit Yojna-0101 -Haridwar Kumbh Mela Awasthapana Suvidha-20-Sahayak Anudan/Ansh daan/Raj Sahayata" under grant No. 13.

9.

Inspection of Shops.

(1)

The Officer-in-charge or any person authorized by him in this behalf may without notice, at any time, of the day or night, enter into and inspect any shop, stall or place used for the sale of food or drink for human consumption and inspect or examine any article of food or drink which may be found therein or the conditions under which such articles are exposed for sale.

(2)

If, in the opinion of the person making an inspection under sub-rule (1) an article, of food or drink meant for human consumption is unfit or if the articles are exposed for sale in contravention of any conditions prescribed under Section 7 of the Act, he may seize and remove the same and the Officer-in-charge as to prevent its being exposed for sale or use for human consumption.

(3)

No person shall be entitled to any compensation for any articles seized and disposed of under sub-rule (2).

10.

Feeding of dairy animals.

- No person shall feed any animal which is kept for dairy purpose with any filthy or deteriorated substance or allow it to be fed on such substances.

11.

Dogs and animals suffering from rabies etc.

- The Officer-in-charge may authorize any person to destroy or cause to be destroyed or to confine or cause to be confined or to extern or cause to be exterminated from Mela area for such period as he may direct, any dog or other animal, which is reasonably suspected to be suffering from rabies or bitten by a dog or other animals suffering or suspected to be suffering as aforesaid. The Officer-in-charge, shall also exercise similar powers with regard to dogs and other animals suffering from any contagious or infectious disease.

12.

Muzzling order.

(1)

Where is in opinion of the Officer-in-charge of rabies in or about the Mela area renders it necessary for him to take action he may issue a public notice requiring the muzzling of all dogs within the Mela area.

(2)

While such muzzling order is in force the Officer-in-charge may exercise with regard to dogs found at large without muzzles, all the powers of confinement and destruction conferred by Rule 11.

13.

Indemnity.

- No damage shall be payable to owners in respect of dog or animal destroyed or otherwise disposal of under the provisions of Rule 11 or 12.

14.

Infectious disease.

(1)

A person suffering from cholera, plague, small-pox or any other infectious disease shall not enter the Mela area.

(2)

The Officer-in-charge may order any person, suffering from any infectious disease, within the Mela area either to leave the Mela area or to get admitted in the infectious Diseases Hospital immediately or within a fixed time, if the order is not complied within the time limit allowed therefor, the Officer-in-charge shall cause such person to be allowed therefor, the Officer-in-charge shall cause such person to be removed to such hospital by force.

(3)

(a)

The Officer-in-charge may authorize the disinfection or destruction of any clothes or other things and disinfection of buildings which might have been infected by the diseased person or otherwise;

(b)

No compensation shall be payable for any loss caused by any order passed under this rule.

15.

Epidemics.

(1)

When any infectious disease breaks out in the Mela area in an epidemic form the Officer-in-charge shall take such steps as may appear necessary to isolate the disease. He shall have the power to confine all persons suffering from such disease to Infectious Diseases Hospital and may order quarantine for persons suspected of infection.

(2)

The Officer-in-charge shall send warnings to neighbouring districts and may prohibit persons from entering the Mela area until the epidemic is over.

(3)

No compensation shall be payable to any person by way of damage for loss of trade or on account of any other loss occasioned by any order passed in good faith under this rule.

16.

Feeding of dairy animals disposal of dead bodies.

- No person shall throw any dead body or any carcass on any open place or into any open place or into any river or water within the Mela area.

17.

Infectious disease.

- The Officer-in-charge shall prepare and submit to the State Government, through the Commissioner, a report in respect of the Mela to reach the Government by not later than June 30, 1998.

18.

Responsibility of the Officer-in-charge.

- The Officer-in-charge shall be generally responsible for the proper conduct of the Mela and, subject to his superintendence and control. It shall be the duty of all the officers and servants working in connection therewith to perform the duties and exercise the powers which may from time to time be entrusted to or conferred upon them.

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